

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Filip Woroniecki	Team: Squad #07	CCRB Case #: 201702181	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/20/2017 11:58 PM, Tuesday, 02/21/2017 12:00 AM	Location of Incident: West 169th Street and Audubon Avenue.	18 Mo. SOL 8/20/2018	Precinct: 33		
Date/Time CV Reported Mon, 02/27/2017 2:43 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 02/27/2017 2:43 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POM Hector Figueroa	16620	955915	033 PCT		
2. POM Anthony Lamberti	19295	943460	033 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Hector Figueroa	Abuse: Police Officer Hector Figueroa searched the vehicle in which § 87(2)(b) was an occupant.			A . Unsubstantiated	
B . POM Anthony Lamberti	Abuse: Police Officer Anthony Lamberti searched the vehicle in which § 87(2)(b) was an occupant.			B . Unsubstantiated	

Case Summary

On February 27, 2017, § 87(2)(b) filed this complaint with the CCRB in-person. On February 20, 2017, at approximately 11:58 p.m., § 87(2)(b) illegally parked his vehicle at the corner of West 169th Street and Audubon Avenue in Manhattan. As § 87(2)(b) exited the vehicle and walked over to a nearby deli, he did not turn the vehicle's headlights off and kept the engine running. All of the windows in the vehicle were rolled up and § 87(2)(b) left the doors unlocked.

As § 87(2)(b) and his friend, § 87(2)(b) were inside of the deli, located at 85 Audubon Avenue in Manhattan, § 87(2)(b) observed PO Hector Figueroa and PO Anthony Lamberti of the 33rd Precinct search his vehicle (**Allegation A and B**). § 87(2)(b) returned to his vehicle once PO Figueroa and PO Lamberti finished the search. He was issued a traffic summons for failure to produce proof of insurance and a parking violation summons.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- As of May 17, 2017, there was no Notice of Claim filed for this complaint (Board Review 02).

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed one prior CCRB complaint (Board Review 03):
 - § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
- PO Figueroa has been a member of the service for three years. He has been the subject of one prior allegation, stemming from one prior complaint, which has been mediated (Board Review 04).
- PO Lamberti has been a member of the service for 10 years. He has been the subject of six prior allegations, stemming from four prior complaints, one of which has been substantiated (Board Review 05).
 - In case 200906829, a physical force allegation was substantiated against PO Lamberti. The CCRB recommended charges and the NYPD instituted instructions.

Potential Issues

- The investigation did not obtain a statement from the only civilian witness involved in this complaint, § 87(2)(b). Multiple attempts were made to contact § 87(2)(b) via telephone and mail; however, contact with him could not be established.
- Attempts have been made to obtain video footage from Burger Heights, located at 79 Audubon Avenue in Manhattan. Despite efforts made by the field team and the

undersigned, the video footage was erased after 9 days, which was confirmed by the manager, § 87(2)(b).

Findings and Recommendations

Allegation A - Abuse of Authority: Police Officer Hector Figueroa searched the vehicle in which § 87(2)(b) was an occupant.

Allegation B - Abuse of Authority: Police Officer Anthony Lamberti searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that PO Figueroa and PO Lamberti searched § 87(2)(b)'s vehicle. § 87(2)(b) stated that he parked his vehicle in front of Burger Heights, located at the corner of West 169th Street and Audubon Avenue in Manhattan. As he went inside of a nearby deli, he did not turn off the vehicle's engine and the rear bumper slightly crossed the pedestrian crosswalk. The vehicle's headlights were turned on, all the windows were rolled up and the doors were left unlocked. While at the bodega with § 87(2)(b), § 87(2)(b) observed PO Figueroa open the driver side doors of his vehicle while PO Lamberti opened the passenger side doors. PO Figueroa and PO Lamberti entered § 87(2)(b)'s vehicle and PO Figueroa searched the contents of the trunk. Since § 87(2)(b) was about 50 feet away, he did not observe the officers' exact movement inside of the vehicle. However, upon returning to his vehicle, § 87(2)(b) noticed that the lights inside of his vehicle were turned on and one of the passenger windows was rolled down. Additionally, the glove compartment was left opened and the contents of the middle console were disheveled. PO Figueroa informed § 87(2)(b) that his vehicle was searched because it was "left alone" (Board Review 06).

PO Figueroa stated that he observed § 87(2)(b)'s vehicle parked at the intersection of West 169th Street and Audubon Avenue in Manhattan, unattended, with its engine running. The rear bumper of § 87(2)(b)'s car was blocking the pedestrian crosswalk. PO Figueroa did not immediately think to approach the vehicle and continued patrolling the area for the next 30 minutes. However, at that time, he returned to see that § 87(2)(b)'s vehicle was still illegally parked at the location. PO Figueroa and PO Lamberti approached § 87(2)(b)'s vehicle and PO Figueroa observed that the front driver and the front passenger windows were opened. As PO Figueroa stepped closer, he smelled a scent of marijuana coming from inside of the vehicle, which he identified through his experience as a police officer and prior narcotics-related arrests. PO Figueroa opened the front driver door and PO Lamberti opened the rear door on the driver's side. PO Figueroa did not observe any marijuana upon opening the door and decided to search the vehicle. He looked inside of the ashtray and searched the front and the back of § 87(2)(b)'s car including the area under the seats and the floor mats. PO Figueroa did not remember if he or PO Lamberti searched the middle console. PO Figueroa did not search the glove compartment or the trunk.

PO Figueroa stated that PO Lamberti similarly checked the whole vehicle, but did not remember which areas in specific he searched. Upon completion of the search, no marijuana was recovered and the engine of the vehicle was shut off. PO Figueroa did not remember whether the vehicle was turned off with a push of a button or by removing keys from the ignition. He also did not know whether it was him or PO Lamberti who turned off § 87(2)(b)'s vehicle. He stated that the engine of the vehicle was turned off to prevent the vehicle from being stolen. PO Figueroa did not fill out any police documents referencing the search or the smell of marijuana inside of § 87(2)(b)'s car (Board Review 07).

PO Lamberti confirmed many details of PO Figueroa's statement, including the circumstances of the illegally parked vehicle, that it was unattended, the engine was running, and upon opening the doors to investigate, that he smelled marijuana, which he identified through his experience as a police officer. PO Lamberti did not remember which doors were opened and who opened each door. § 87(2)(b)'s vehicle was then turned off, most likely by pressing the push-button. PO Lamberti searched the ashtray, which was in plain view, and the glove compartment. He did not remember whether he or PO Figueroa searched the middle console. The lights inside of § 87(2)(b)'s vehicle were turned on to ensure better visibility during the search; however, he did not remember who turned them on. PO Lamberti did not search the trunk and did not remember if PO Figueroa did so. PO Lamberti stated that the smell of marijuana coming from inside of § 87(2)(b)'s car was the only reason for the search; however, no marijuana was recovered. After the search was completed, PO Lamberti and PO Figueroa exited the vehicle, shut the doors and observed it for the next 10 to 15 minutes to ensure it would not be stolen (Board Review 08).

Whenever police officers encounter an unattended vehicle with keys in the ignition, the proper procedure is to remove the key from the ignition and either return the key to the violator or deliver the key to the desk officer to be invoiced. Patrol Guide, Procedure 209-27 (Board Review 09). Whenever police officers smell marijuana inside of a vehicle, they have probable cause to search such vehicle and its occupants. People v Valette, 88 A.D.3d 461 (2011) (Board Review 10).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** and **Allegation B** be closed as **unsubstantiated**.

Squad: 7

Investigator: _____ WORONIECKI 5/19/2017
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date